FRANCIS DONGO
versus
TSITSI MOLLY MUPFUNYA CHIWANDAMIRA

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE, 12 June & 2 July 2026

Chamber Application

T Maanda with *S Mungofa,* for the applicant
T Tabana, for the respondent

DEMBURE J:

1. Before me is an opposed chamber application for contempt of court filed in terms of r 79 of the High Court Rules, 2021. The applicant seeks the following relief:

> "IT IS ORDERED THAT:
> 1. The application be and is hereby granted.
> 2. Respondent be and is hereby found to be in contempt of court order of the High Court granted under Case Number HCH 3938/24.
> 3. The respondent is hereby committed to Chikurubi Maximum Prison for a period of 6 months, all of which is suspended on condition that respondent shall immediately and in any event not later than seven days from the date of this order, comply fully with the court order in Case No HCH 3938/24.
> 4. The respondent shall pay costs of this application on attorney and client scale."

2. On 12 June 2026, I heard oral submissions from the parties' legal practitioners on a point of law which I had raised *mero motu*. I thereafter reserved my judgment *sine die*.

FACTUAL BACKGROUND

3. It is common cause that the parties entered into a written partnership agreement on 28 February 2012. The partnership was to operate a school in Rusape- known as Milestone Preparatory School and College (*"the school"*). The school has students from the first level of the Early Childhood Development stage to the Advanced Level. It is also a boarding school.

4. The parties got embroiled in a dispute over the production of financial information in respect of the partnership business requested by the applicant from the respondent. It was alleged that the respondent refused to furnish the information in question. The information related to the financial and school records of the partnership business, which the applicant contended the respondent possessed. The dispute was referred to arbitration in terms of the parties' agreement. The arbitrator appointed to deal with the matter was Roseline Lynett Kudakwashe Zigomo. Following a hearing before her, the arbitrator issued an award, recorded as having been issued with the respondent's consent, on 6 August 2024. The respondent was ordered, *inter alia*, to supply, within seven days of the date of the award, the various listed information, including all bank statements for the period January 2010 to the date of the award and student enrolment registers for the period January 2010 to the date of the award.

5. Subsequent to the issuance of the arbitration award, the applicant approached the court for the registration of the award in case number HCH 3938/24. The application was granted in default of the respondent before MUSITHU J on 17 October 2024. The respondent was ordered to supply the applicant with the documents stated in the arbitration award within seven days of the court order. In addition, the respondent was directed, among other terms, not to make decisions regarding the running and management of the affairs of the school without consulting the applicant on important matters.

6. The applicant has now approached the court alleging that the respondent was served with the court order, that she has not complied with the order, and that the non-compliance was wilful and *mala fide*. The respondent also filed a court application for rescission of the default judgment in question under case number HC 4808/24, which she averred is pending. She also challenged the arbitral award by filing an application to set it aside in case number HC 4639/24. She challenged the allegations that she wilfully and with *mala fides* failed to comply with the court order.

THE POINT OF LAW

7. When the parties' legal practitioners appeared before me on 12 June 2026, I raised an issue that exercised my mind. The question was whether or not there were valid proceedings before me, given that r 15(12) of the High Court Rules, 2021, was not complied with. The rule requires personal service of any process seeking an order that affects a person's liberty.

Accordingly, I invited the legal practitioners to make submissions on the point of law that I had raised *mero motu*. The law is settled that the court is at liberty to raise any issue which concerns the validity of proceedings before it. Thus, before the court's jurisdiction is invoked, it must be satisfied that a valid application is before it. The point of law also goes to the root of these proceedings. However, where the point has not been canvassed by the parties in their pleadings or written submissions, the court is enjoined to give the parties an opportunity to address it or make submissions on the point before a determination is made. The above legal principles were enunciated in *Nzara & Ors* v *Kashumba N.O. & Ors* SC 18/18 at pp 11-12 where UCHENA JA held that:

> "The function of a court is to determine disputes placed before it by the parties. It cannot go on a frolic of its own. Where a point of law or a factual issue exercises the court's mind but has not been raised by the parties or addressed by them either in their pleadings in evidence or in submissions from the bar, the court is at liberty to put the question to the parties and ask them to make submissions on the matter.
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> In *Welkom Municipality* v *Masureik and Herman T/A Lotus Corp* 1997 (3) SA 363 at 371 G-H MARAIS JA commenting on what the court should base its decision on said:
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> > 'I should add that whether or not South Africa did or did not fail to do so is a question of fact upon which there was no evidence before the court *a quo*, and for reasons too obvious to require enumeration, the learned Judge was not entitled to enquire into this issue of fact after reserving judgment and without any reference to the parties, and then to decide it. Compare *Kauesa* v *Minister of Home Affairs and Others* 1996 (4) SA 965 (NmS) at 973H – 974C.'
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> In the Namibian case of *Kauesa* v *Minister of Home Affairs and Others* 1996 (4) 965 (NmS) DUMBUTSHENA AJA at pages 973H to 974C said:
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> > 'The above matters are not crucial to the determination of this appeal. They are however, important because a frequent departure from counsel's, more correctly the litigant's case, may be wrongly interpreted by those who seek justice in our courts of law. It is the litigants who must be heard and not a judicial officer.
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> > It would be wrong for judicial officers to rely for their decisions on matters not put before them by litigants either in evidence or in oral or written submissions. Now and again, a Judge comes across a point not argued before him by counsel but which he thinks material to the resolution of the case. It is his duty in such a circumstance to inform counsel on both sides and invite them to submit arguments either for or against the Judge's point. It is undesirable for a court to deliver a judgment with a substantial portion containing issues never canvassed or relied on by counsel...'" (*my emphasis*)

The parties' legal practitioners made the following submissions on the point of law.

APPLICANT'S SUBMISSIONS

8. Mr *Maanda* submitted that it was accepted that, in terms of the rules, an application that seeks an order that affects the liberty of a person must be served on that person personally. He further stated that in this case, it was not served personally. The rule requiring service to be made personally is akin to a summons in a criminal matter, where service must be made personally to avoid a warrant of arrest. The purpose of the rule is to avoid a default judgment. This was to avoid loss of liberty. In this matter, the respondent, while she has not been personally served, has been served and filed a notice of opposition. The mischief of the need to serve personally has been taken care of by the notice of opposition. He prayed that the court find that the proceedings are proper and valid, as what the rules intended to achieve has been achieved.

9. Counsel further argued that the question is what prejudice the respondent suffers. There is no prejudice, as the application was brought to the respondent's attention and she was given an opportunity to respond. It was also submitted that if the court finds that there was no proper service, the rule was substantially complied with. This court is at large in condoning a departure from the rules in cases where it is in the interests of justice to do so, where there is no prejudice. The departure be condoned in the alternative in terms of r 7. When I queried whether the word "shall" does not mean that the r 15(12) is peremptory, counsel accepted that the word connotes that it is peremptory. He, however, argued that even a peremptory provision of the law or the word "shall" does not take away the judge's discretion in terms of r 7. It is a peremptory rule, but must be considered in its context. The mischief was that there should be no default judgment. The service was acknowledged. Counsel insisted that the non-compliance was not fatal. That the application is not a nullity.

RESPONDENT'S SUBMISSIONS

10. *Per contra*, Mr *Tabana* submitted that the provisions of r 15(12) are clear and admit of no other interpretation. The requirement for personal service is that there is a penalty that restricts the person's liberty. The peremptory nature of the provision is that it is meant to be observed. If a rule requires strict compliance, the non-compliance is a nullity. A nullity cannot give rise to any rights. What is before the court is nothing. A nullity cannot be condoned. The application is fatally defective and must be dismissed.

11. Counsel had sought to argue that the non-service of the application also goes with the non-service of the court order on the respondent. The issue that the court order sought to be

enforced was not served on the respondent personally is not part of the point of law I had raised. I will, therefore, not consider the submissions made on that side issue nor deal with the alleged service of the order at this stage. Mr *Tabana* further submitted that what is before the court is a matter which is fatally defective. He stated that he did not intend to ask for costs. His prayer was that the application be dismissed with no order as to costs.

APPLICANT'S REPYING SUBMISSIONS

12. Mr *Maanda* argued that the prayer for the dismissal of the matter is not the correct prayer. If the court were to find that the service was not properly done, the remedy would be to strike the application off the roll. The matter would not be properly before the court and cannot be dismissed. Counsel further contended that the matter is one in which a departure from the rules can be condoned. That before the court is a properly filed application. Only the issue of service arises. The effect of non-compliance would depend on the rule applied and the context. The rule does not nullify the application for non-service.

ISSUE FOR DETERMINATION

13. The question which I must determine, arising from the point of law I raised, is whether or not this application is valid.

APPLICATION OF THE LAW TO THE FACTS

14. The issue of the validity of these proceedings arises from the provisions of r 15(12) and the effect of invalid proof of service. The said rule states as follows:

> "(12) Process in relation to a claim for an order affecting the liberty of a person or his or her status shall be served by delivery of a copy thereof to that person personally." (*my emphasis*)

15. It is a settled principle of the law that the use of the word "shall" in a statute indicates the intention of the legislature, in this case, the drafters of the rules, to make the provision peremptory. This position was restated in *Takashinga Kare Housing Pay Scheme* v *City of Harare & Ors* SC 88/25 at pp 12-13, where MWAYERA JA said:

> "29…It is an established principle that the use of the word "shall" in a statutory provision denotes the legislature's intention of imposing a mandatory or peremptory obligation as opposed to the use of the word "may," which typically suggests a permissive or discretionary provision.

30. In *Mukwaira* v *Minister of Lands, Agriculture, Fisheries, Water & Rural Resettlement* SC 15/24, at p 15, the following pertinent sentiments were made:

> 'It is trite that where the word 'shall' is used it denotes a mandatory requirement. Thus, the use of the word "shall" in s 3 (1) (c) is imperative – it denotes that the section is peremptory, and thus compliance with its provisions is mandatory.'

31. Similarly, in *Shumba & Anor* v *ZEC & Anor* 2008 (2) ZLR 65 (S) at 80 D-G, this Court held:

> 'It is the generally accepted rule of interpretation that the use of peremptory words such as "shall" as opposed to "may" is indicative of the legislature's intention to make the provision peremptory. The use of the word "may" as opposed to "shall" is construed as indicative of the legislature's intention to make a provision directory. In some instances, the legislature explicitly provides that failure to comply with a statutory provision is fatal. In other instances, the legislature specifically provides that failure to comply is not fatal. In both of the above instances no difficulty arises. The difficulty usually arises where the legislature has made no specific indication as to whether failure to comply is fatal or not.'

32. Further, in *Sibanda & Anor* v *Ncube & Ors*/ *Khumalo & Anor* v *Mudimba & Ors* SC 158-20 at p. 15, Patel JA (as he then was) held that:

> 'The broad test for ascertaining the true nature of a statutory duty was enunciated more than a century ago in the case of *Howard* v *Bodington* (1877) 2 PD 203, at 211: '… in each case you must look to the subject-matter, consider the importance of the provision and the relation of that provision to the general object intended to be secured by the Act, and upon a review of the case on that aspect decide whether the enactment is what is called imperative or only directory…'"

33. In *Chirosva Minerals (Pvt) Ltd* v *Minister of Mines and Ors* 2011 (2) ZLR 274, the court held that <u>the disregard of a peremptory provision in a statute is fatal to the validity of the proceedings affected</u>." (*my emphasis*)

16. The provisions of r 15(12) are clear and unambiguous. By the use of the word "shall", it connotes that the provisions are peremptory and compliance thereof is mandatory. For any service to be valid, the rule had to be strictly complied with. The applicant was thus required to serve the application only by delivering it to her personally. The requirement for personal service has long been emphasised, even before the 2021 amendments to the court rules. See *Valentine* v *Mydale International Marketing (Pvt) Ltd* HH 233/17, where the court made the following apposite remarks:

> "It is trite that a party to contempt proceedings must be personally served. In *Mydale International (Pvt) Ltd* v *Dr Rob Kelly* HH4/10 GOWORA J (as she then was) aptly stated that:
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> > 'It would seem to have escaped the attention of the learned counsel for the applicant that a party against whom an order for contempt is sought must not only be personally cited but that process for such citation must be personally served on the respondent."

17. In *casu*, there is no dispute that the application was not personally served on the respondent. The certificate of service at p 46 of the record shows that the application was served upon one Masylin Chareka, who is said to be the receptionist who accepted service on behalf of the respondent. Mr *Maanda* accepted that the service was not in compliance with the provisions of r 15(12) but argued that the non-compliance was not fatal. I do not agree that non-compliance with peremptory rules of the court is not fatal. It is trite that failure to comply with peremptory provisions of the rules or a statute leads to a nullity. In other words, any act done in contravention of a peremptory provision of a statute is fatally defective or a nullity. See *Minister of Justice, Legal & Parliamentary Affairs* v *Muskwe & Ors* SC 67/22 at pp 20-21. In *Jensen* v *Acavalos* 1993 (1) ZLR 216 (S) at 219D KORSAH JA made the following remarks about the Notice of Appeal that did not comply with r 29 of the Supreme Court Rules:

> "This notice of appeal was defective for non-compliance with the mandatory provisions of Rule 29, subrules (c), (d) and (e) which require the applicant or his legal representative to state: (i) whether the whole or only part of the judgment is appealed against; (ii) the ground of appeal to be set forth concisely and in separately numbered paragraphs; and (iii) the exact nature of the relief which is sought."

Further at pp 219H-220D, the learned JUDGE OF APPEAL stated:

> "The notice of appeal, being bad for non-compliance with the rules, was not cured by the filing on 3 January 1990, of grounds of appeal without a prayer. Indeed, even if the grounds of appeal filed on 3 January 1990 had contained a prayer for relief, it would not have been effectual in validating the defective notice of appeal.
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> The reason is that a notice of appeal which does not comply with the rules is fatally defective and invalid. That is to say, it is a nullity. It is not only bad but incurably bad, and, unless the court is prepared to grant an application for condonation of the defect and to allow a proper notice of appeal to be filed, the appeal must be struck off the roll with costs: *De Jager* v *Diner & Anor* 1957 (3) SA 567 (A) at 574 C-D.
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> In *Hattingh* v *Pienaar* 1977 (2) SA 182 (O) … at 183, KLOPPER JP held that a fatally defective compliance with the rules regarding the filing of appeals cannot be condoned or amended. What should actually be applied for is an extension of time within which to comply with the relevant rule. With this view, I most respectfully agree; for if the notice of appeal is incurably bad, then, to borrow the words of LORD DENNING in *McFoy* v *United Africa Co Ltd* [1961] 3 All ER 1169 (PC) at 1172I, 'every proceeding which is founded on it is also bad and incurably bad. You cannot put something on nothing and expect it to stay there. It will collapse'." (*my emphasis*)

18. Given the above settled law, there should be no more debate on the effect of non-compliance with the peremptory provisions of the rules or statute. The fact that the respondent has filed a notice of opposition does not validate the service and, consequently, the application itself. The law is clear that where there is no proper service, the proceedings are a nullity. This was affirmed in *Fabio Aponte* v *Antolini Luigi & C.S.P.A & Ors* SC 89/25 at p 11, where CHITAKUNYE JA said:

> "The need for effective service cannot be overemphasised. In *CBZ Bank Ltd* v *Ziyambi & Ors* HH 74/17 at p 6, the court alluded to the importance of effective service of process in these words:
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> > 'The purpose of the rules on service and why the rules must be adhered to is meant to safeguard the rights of persons who will not have been served with process and therefore being in the dark that a claim has been made against them from having default judgments granted against them. Save as the law may specify by way of limitation or denial of such right, the *audi alteram partem* rule or doctrine must always be followed. If courts grant orders against persons without giving them an opportunity to defend themselves which opportunity a person can only utilize or elect not to utilize after service of process, the administration of justice will fall into disrepute. A court allowing this would be breaching the rights of such defendant to administrative justice and a fair hearing as provided for in the operative or relevant provisions of ss 68 and 69 and 165 (1) (a) of the Constitution.'
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> See also *CABS* v *Chirocherwa* 2001(2) ZLR 452(H).
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> "It is axiomatic that the validity of service affects the validity of proceedings. Where there is no valid service, the process and the proceedings are a nullity." (*my emphasis*)

19. Accordingly, once the purported service of the process is invalid for non-compliance with r 15(12), it follows that the present application is also a nullity. It lacks legal existence. There is nothing upon which the court can exercise its jurisdiction to hold a contempt of court enquiry. Its jurisdiction in terms of r 79 has not been properly invoked. These proceedings being a nullity cannot beget any lawful process. Nothing can arise from something that is incurably bad or a nullity. Mr *Maanda* could not competently separate the validity of the service from the validity of the proceedings. The argument about prejudice does not arise at all. The position is simply that the proceedings themselves are invalid and, therefore, there is nothing to condone. It is trite that a nullity cannot be condoned. See *Dombodzvuku* v *CMED (Pvt) Ltd* SC 31/12 at p5; *Econet Wireless (Pvt) Ltd* v *Trustco Mobile (Proprietary) Ltd & Anor* SC 43/13, *Ahmed* v *Docking*

Station Safaris (Pvt) Ltd t/a CC Sales SC 70/18 at p. 4; *Moyo* v *Zvoma* SC 28/10 at pp 12-13; *Jensen* v *Acavalos (supra*).

20. An application for condonation cannot be founded on a nullity. The attempt to seek condonation was, therefore, legally incompetent. See *Chiunga* v *AFC Commercial Bank Ltd* SC 02/26 at pp 10-11, where the court aptly said:

> "…there must exist a competent matter in respect of which condonation may validly be granted. Where the proceedings are a nullity, any subsequent application founded upon them is equally void. This position was aptly stated in *The Garrat Trust* v *Creative Credit (Pvt) Ltd* SC 146/21 at p 6, wherein BHUNU JA noted the following with regards to null proceedings:
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> > 'The leading case on the effect and import of void proceedings is *Mcfoy* v *United Africa Co Ltd*. In that case Lord DENNING observed that:
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> > > 'If an act is void, then, it is in law a nullity. It is not only bad but incurably bad. There is no need for an order of court for it to be set aside. It is automatically null and void without more ado, although it is sometimes more convenient to have the court declare it to be so. And every proceeding which is founded on it is also bad. You cannot put something on nothing and expect it to stay there. It will collapse.'
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> On the basis of the law as articulated through the cases once the learned judge had taken the correct view that the main application upon which the counter application was founded was a nullity, he ought to have declared the application a nullity and stop there. Since the counterclaim was founded on a nullity it had no independent existence of its own. It would therefore have collapsed together with the main application as it was riding on the back of the main application. Faced with the same situation in *Care International Zimbabwe* v *ZIMRA & Ors* MTSHIYA J sitting in the same court had this to say:
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> > 'I agree with the first respondent that there is no valid application before the court and accordingly the rest of the issues raised by the respondents cannot be delved into. The finding estops me from going any further.'
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> MTSHIYA J was undoubtedly correct that once an application is found to be fatally defective the court cannot go on to determine any other issues based on the defective application."
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> 28. The above authority reinforces the principle that since the order sought to be altered by the appellant was a nullity, the application for condonation was also a nullity. Therefore, the court is not enjoined to make an inquiry into other issues which include the requirements for granting condonation. It is trite that when a court finds a point that is dispositive of the matter, it must end there.
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> Thus, once a court determines that the main proceedings were a nullity, it must refrain from considering any derivative or dependent claims, since they have no legal foundation to stand on." (*my emphasis*)

21. Mr *Maanda*'s submission that there was substantial compliance and that the court, in the interests of justice, may exercise its discretion in terms of r 7 and condone the departure from the rules is well-resolved by the above authorities. No condonation can validly arise to salvage a

nullity. Rule 7 is not designed to condone a nullity. Once something is a nullity, it simply means that there is nothing before the court to even condone. Thus, in *Munyorovi* v *Sakonda* HH 467/21, considering the equivalent of r 7 in the old rules court, it was also clearly emphasised that:

> "Rule 4C cannot be used to condone fatally defective pleadings in either form or substance which are considered a nullity. It was never the intention of the legislature that r4C be resorted to for purposes of condoning fatal defects or nullities and revive pleadings."

22. The argument that, in the context of the rule, the service, though not personal service, would not be prejudicial or that, since the respondent managed to file papers, then there is no issue, is misplaced. The fatal defect is not cured by the respondent's appearance in court nor by the filing of a notice of opposition. The non-compliance goes to the root of the validity of the proceedings themselves. Thus, whether or not the respondent filed any papers or appeared in court is of no consequence. It does not lend any validity to the service and the proceedings. However, the appropriate order is not to dismiss the matter. Since the proceedings are a legal nullity, it simply follows that the matter is not properly before the court. The matter ought to be struck off the roll.

23. As regards costs, there is reason to depart from the general rule that costs should follow the cause. Mr *Tabana* accepted that there be no order as to costs.

DISPOSITION

24. Rule 15(12) is couched in peremptory language, and compliance thereof is mandatory. The applicant failed to comply with r 15(12) by her failure to effect personal service of the application on the respondent. There was no substantial compliance to talk about in the circumstances. That non-compliance invalidates the purported proof of service of the application. Accordingly, the purported proof of service, being a certificate of service at p 46 of the record, is a nullity. That it is a nullity means that there was no proper service of the application. The effect of the invalid service is to render these proceedings a nullity. See the *Fabio Aponte* case (*supra*). In the premises, there is no valid application before me.

25. In the result, I order as follows:

The application is struck off the roll with no order as to costs.

DEMBURE J: ……..

Maunga Maanda & Associates, applicant's legal practitioners
Tabana & Marwa, respondent's legal practitioners